

# VCL315772 Wells Fargo Bank, N.A. vs. Herrera, Steve

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-09-21

Motion: Motion to Set Aside Dismissal and Enter Judgment

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Re: Wells Fargo Bank, N.A. vs. Herrera, Steve

Case No.: VCL315772

Date: September 21, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Motion to Set Aside Dismissal and Enter Judgment

Tentative Ruling: To grant the motion and enter judgment as requested

## Facts

In this collection matter, the parties filed a stipulation for entry of judgment and settlement indicating that the principal amount was \$10,665.60 and that judgment would not be entered if the following payments were made:

(A) \$361.60 shall be paid on or before November 24, 2025;

(B) \$368.00 shall be paid on or before the 24th of each and every consecutive month commencing on or before December 24, 2025 through and including February 24, 2028; and

(C) \$368.00 shall be paid on or before March 24, 2028;

In the event of default, the stipulation indicates that Plaintiff is entitled to entry of judgment for the judgment amount noted above, less any credits and plus costs.

The stipulation indicates that the Court shall retain jurisdiction under Code of Civil Procedure section 664.6.

On February 27, 2026, this matter was dismissed pursuant to Code of Civil Procedure section 664.6.

Plaintiff indicates Defendant has only made payments totaling \$729.60.

#### Authority and Analysis

Section 664.6 (a) states:

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

"The court's retention of jurisdiction under section 664.6 includes jurisdiction over both the parties and the case itself, that is, both personal and subject matter jurisdiction." (Lofton v. Wells Fargo Home Mortgage (2014) 230 Cal.App.4th 1050, 1061.) "Section 664.6 permits the trial court judge to enter judgment on a settlement agreement without the need for a new lawsuit." (Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1360.)

As indicated above, the Court has retained jurisdiction over the parties despite dismissal and this matter and therefore is prepared to "enter judgment pursuant to the terms of the settlement."

Defendants appear to have breached the settlement, based upon the declaration of Plaintiff's counsel and, the Court, having no opposition, grants the motion in the amount requested of \$10,211.00, consisting of the principal amount due of \$10,665.60 plus the costs of \$275.00 less credits for payments made in the amount of \$729.60.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.